

ORDINANCE NO. 33-24

AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, REZONING LAND MEASURING APPROXIMATELY 9.34 ACRES LOCATED SOUTH OF SHERWOOD BOULEVARD AND EAST OF SOUTH MILITARY TRAIL AT 3900 SHERWOOD BOULEVARD, FROM SINGLE FAMILY RESIDENTIAL (R-1-AA) AND COMMUNITY FACILITIES TO SINGLE FAMILY RESIDENTIAL (R-1-A), AS MORE PARTICULARLY DESCRIBED HEREIN; AMENDING THE "CITY OF DELRAY BEACH, ZONING MAP, JULY 6, 2021"; PROVIDING A CONFLICTS CLAUSE AND A SEVERABILITY CLAUSE; PROVIDING AN EFFECTIVE DATE; AND FOR OTHER PURPOSES.

WHEREAS, TOLL SOUTHEAST LP COMPANY, INC., is the owner of 3900 Sherwood Boulevard ("Property"), located south of Sherwood Boulevard and east of South Military Trail, which measures approximately 9.34 acres, as more particularly described in Exhibit "A," Sketch and Legal Description; and

WHEREAS, the Property is shown on the City of Delray Beach Zoning Map, dated July 6, 2021, as being zoned Single Family Residential (R-1-AA) and Community Facilities (CF) District; and

WHEREAS, the Owner authorized Edwin C. Muller III, AICP, CNU-A, CS (the "Agent") to submit an application for a rezoning of the Property ("Property") to Single Family Residential (R-1-A), as shown in Exhibit "B," Proposed Zoning; and

WHEREAS, pursuant to Florida Statutes 163.3174(4)(c), the Planning and Zoning Board for the City of Delray Beach, sitting as the Local Planning Agency, considered this item at a public hearing on October 21, 2024 and voted 5 to 0 to recommend that the Property hereinafter described be rezoned to Single Family Residential (R-1-A), finding that the request and approval thereof is consistent with the Comprehensive Plan and meets the criteria set forth in the Land Development Regulations, and is in the best interest of the City; and

WHEREAS, the City Commission considered the rezoning request and has considered the respective findings as set forth in the Comprehensive Plan and Land Development Regulations.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COMMISSION OF THE CITY OF DELRAY BEACH, FLORIDA, AS FOLLOWS:

Section 1. The recitations set forth above are incorporated herein.

Section 2. The City Commission of the City of Delray Beach finds that Ordinance No. 33-24 is consistent with the Comprehensive Plan, meets the Criteria set forth in the Land Development Regulations, and the designation of Single-Family Residential District (R-1-A) is appropriate for the Property and in the best interest of the City; and

Section 3. The Zoning District Map of the City of Delray Beach is amended to reflect a zoning classification change from Community Facilities (CF) and Single Family Residential (R-1-AA) to Single-Family Residential (R-1-A) for the Property, as shown on the map in Exhibit "C".

Section 4. The City of Delray Beach Zoning Map, shall, upon the effective date of this Ordinance, be amended to conform to the provisions of Section 3 hereof.

Section 5. All ordinances or parts thereof or parts of the Code conflicting or inconsistent with the provisions of this Ordinance are hereby repealed.

Section 6. If any word, clause, sentence, paragraph, section or part thereof contained in this Ordinance is declared to be unconstitutional, unenforceable, void or inoperative by a court of competent jurisdiction, such declaration shall not affect the validity of the remainder of this Ordinance.

Section 7. This Ordinance shall become effective concurrent with the effective date of Ordinance No. 32-24, amending the Land Use Map, and upon approval at second reading. No development orders, development permits, or land uses dependent on this amendment may be issued or commence before it has become effective.

PASSED AND ADOPTED in regular session on second and final reading on this 10th day of December, 2024.

ATTEST:

Alexis Givings
Alexis Givings, Interim City Clerk

Thomas F. Carney, Jr.
Thomas F. Carney, Jr., Mayor

Approved as to form and legal sufficiency:

Lynn Gelin
Lynn Gelin, City Attorney

First Reading 11/19/2024

Second Reading 12/10/2024



EXHIBIT "A"



Duncan
VICINITY MAP
NOT TO SCALE

LEGAL DESCRIPTION: (PARCEL "A")
A PORTION OF THE SOUTHWEST QUARTER (SW 1/4) OF SECTION 24, TOWNSHIP 46 SOUTH, RANGE 42 EAST
BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGIN AT THE SOUTHEAST CORNER OF LOT 12, BLOCK 1, OF HIGHLAND BLVD. OF BLOCKS 2, 3, 4 AND 5 OF SHERRWOOD PARK, ACCORDING TO THE PLAT THEREOF RECORDED IN PLAT BOOK 27, PAGE 181; PUBLIC RECORDS OF PALM BEACH COUNTY, FLORIDA. THENCE NORTH 82°37'20" WEST, ALONG THE SOUTH LINE OF SAID BLOCK 2, A DISTANCE OF 488.00 FEET TO THE NORTH-EAST CORNER OF LANDS DESCRIBED 1908, PAGE 180, THENCE SOUTH 82°36'40" EAST, A DISTANCE OF 81.42 FEET TO THE SOUTH-EAST CORNER OF SAID BLOCK 2, THENCE SOUTH 82°36'40" EAST, A DISTANCE OF 92.25 FEET TO THE SOUTH-EAST CORNER OF SAID LANDS DESCRIBED IN OFFICIAL RECORDS BOOK 1008, PAGE 258, THENCE SOUTH 82°36'20" EAST, A DISTANCE OF 523.36 FEET TO A POINT, THENCE SOUTH 88°07'27" EAST, A DISTANCE OF 375.33 FEET TO A POINT, THENCE NORTH 88°07'27" EAST, A DISTANCE OF 766.33 FEET TO THE POINT OF BEGINNING.

LEGEND

A/C	AIR CONDITIONER
B.U.P.	SACRIFICE PREVENTOR
E	EVAPORATION
F.I.	FIRST FLOOR
I.D.	IDENTIFICATION
L	LENGTH
M	MEASURED
O.R.B.	OFFICIAL RECORDS BOOK
P	PLAT
P.L.	PAGE
P.B.	PLAT BOOK
G	CENTERLINE
N	AND
R	NUMBER
(7)	LITTELY POLE
(8)	SINKING MANHOLE
(9)	CONCRETE
	CHAIN LINK FENCE

NOTES

1. THIS IS NOT A SURVEY.
2. LEGAL DESCRIPTION CREATED FOR LOT SPLIT.
3. NO SEARCH OF THE PUBLIC RECORDS FOR THE PURPOSE OF
ASPARTAN TITLE WAS PERFORMED BY THIS OFFICE.
4. NO SUBSURFACE IMPROVEMENTS WERE LOCATED AS PART OF
THIS SURVEY.
5. ALL CORNERS AND BEARINGS AND DISTANCES SHOWN HEREON ARE
TO BE RECORDED AND MEASURED UNLESS OTHERWISE NOTED
6. SOME FEATURES MAY NOT BE AT SCALE IN ORDER TO SHOW DETAIL.
7. THE BEARINGS SHOWN HEREON ARE BASED UPON THE NORTH LINE
HAVING A BEARING OF N89°22'00"W.

Flood Zone X
Community Number: 125152
Parcel: 120900078
Suffix: F
Base Flood Elevation: N/A
FIRM Date: 10/05/2017
FIRM Effect. Rev Date: 10/05/2017

THIS IS TO CERTIFY THAT THE SKETCH OF DESCRIPTION SHOWN HEREON IS ACCURATE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND BELIEF. I FURTHER CERTIFY THAT THIS SKETCH AND LOGICAL DESCRIPTION MEETS THE STANDARDS OF PRACTICE SET FORTH BY THE FLORIDA BOARD OF PROFESSIONAL SURVEYORS AND MAPPERS IN CHAPTER 12-11, FLORIDA ADMINISTRATIVE CODE, PURSUANT TO SECTIONS 475.47 OF FLORIDA STATUTES.

**Kenneth
Osborne**

KENNETH J. OSBORNE
FACULTY OF BUSINESS, UNIVERSITY OF GUELPH, GUELPH, ONTARIO

REVISIONS:
1. IMPROVEMENTS TURNED OFF: 04-10-2020

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EXHIBIT "B" **EXISTING ZONING**

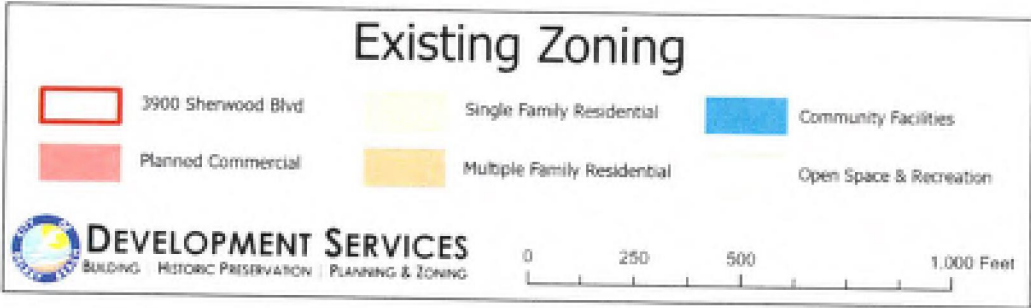
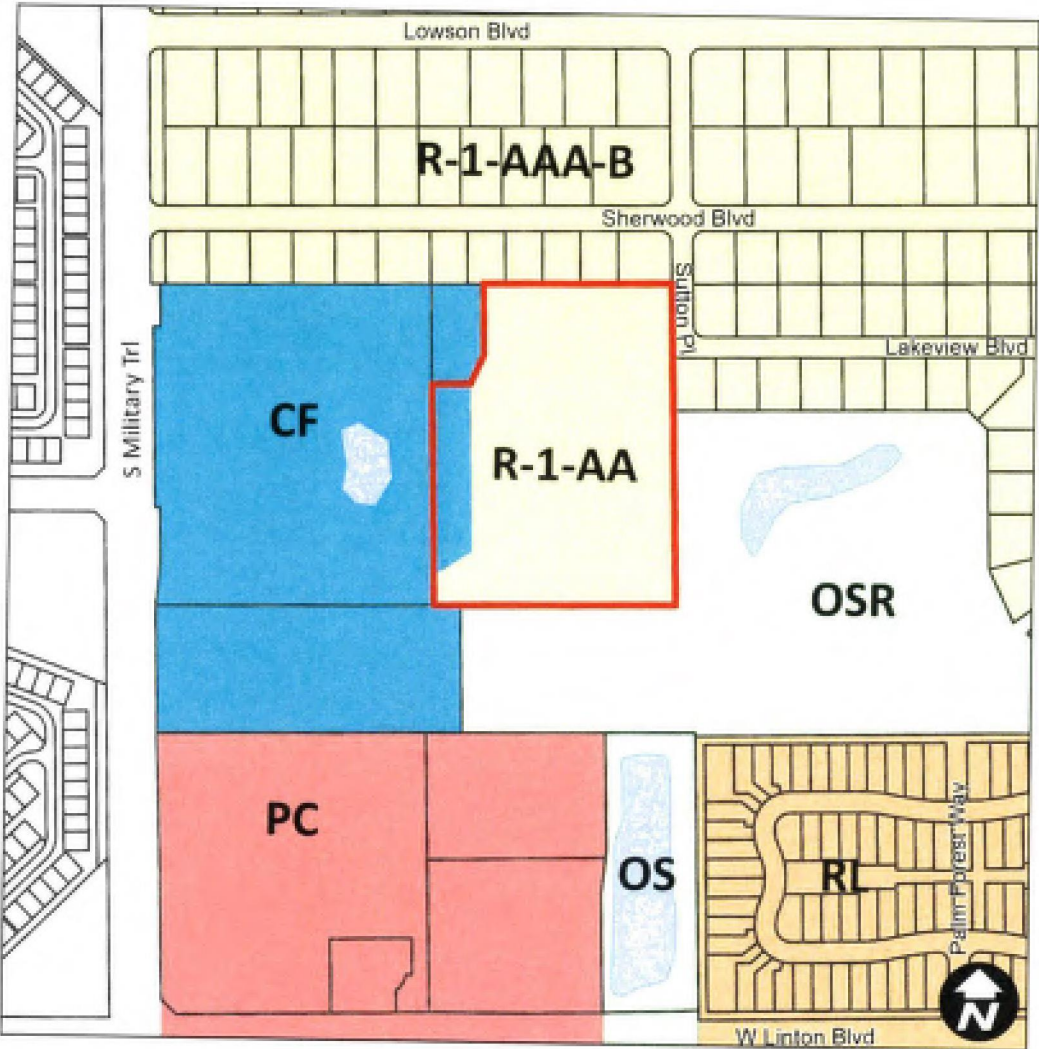


EXHIBIT "C" PROPOSED ZONING

